

FORMAL ADA/PROWAG CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

Hawthorne/Weatherstone Neighborhood Greenway Project (2024)

Submitted to: Michael Shermis, ADA Coordinator / Human Rights Commission Director

City: City of Bloomington, Indiana

Date: March 20, 2026

Re: ADA/PROWAG Non-Compliance — Hawthorne/Weatherstone Neighborhood Greenway

1. Introduction and Overview

This document constitutes a formal civil rights grievance filed pursuant to Title II of the Americans with Disabilities Act of 1990 (42 U.S.C. § 12131 et seq.), Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 794), and the Public Rights-of-Way Accessibility Guidelines (PROWAG), Final Rule, 36 CFR Part 1190, effective October 7, 2023. The complaint concerns accessibility failures in the City of Bloomington's Hawthorne/Weatherstone Neighborhood Greenway project, construction of which commenced June 2024.

The Hawthorne/Weatherstone Neighborhood Greenway project was described by the City in its March 2022 public announcement with the following statement:

"Neighborhood Greenways are an important component of the community's plans to support an improved quality of life and connectivity. Past Neighborhood Greenway projects have shown an increase in the number of people walking, rolling, and bicycling in the area."

The use of the term 'rolling' constitutes the City's own acknowledgment that wheelchair users and others who use wheeled mobility devices are among the intended beneficiaries of the Neighborhood Greenway program. This language appeared in the City's earliest public communications about this project and was repeated in the City's March 26, 2024 press release announcing the commencement of construction. The City's June 2022 survey of corridor users specifically asked about 'mobility device' use and found that 75% of surveyed corridor users walk or use a mobility device.

The City's March 26, 2024 announcement stated that the awarded bid of \$873,378 included approximately \$128,000 specifically designated for accessibility improvements, including sidewalk repairs and new curb ramps. The same announcement stated:

"New features will be in compliance, and existing features modified as necessary to bring them into compliance where feasible and appropriate."

Despite these explicit representations, the project was completed without establishing a continuous accessible Pedestrian Access Route (PAR) along Hawthorne Drive. A wheelchair user cannot travel the Hawthorne corridor due to conditions documented in this complaint. Wheelchair users have been excluded from the project's actual benefits.

The City's March 2024 announcement also stated:

"At approximately 20% of the cost of sidewalk construction, Neighborhood Greenways provide relatively low-cost transportation improvements."

This statement acknowledges that the Neighborhood Greenway program is explicitly conceived as an alternative to sidewalk construction — a lower-cost approach that improves conditions for cyclists and general pedestrians while deferring the more expensive infrastructure that would provide full accessibility. Where this cost-saving approach is pursued on a corridor with known accessibility deficiencies, the City assumes a heightened obligation to ensure that the resulting pedestrian environment meets minimum ADA/PROWAG standards. A program that improves conditions for able-bodied users while leaving wheelchair users without an accessible route cannot satisfy the City's civil rights obligations under Title II of the ADA.

This complaint also identifies South Woodlawn Avenue as a higher-use parallel corridor that is itself inaccessible and that, if remediated, would provide a compliant alternative pedestrian route serving a significantly larger population. The complainant's preferred resolution of the broader access failure on this corridor is described in Section 7.

2. Applicable Regulatory Framework

This project is governed by the following standards, each of which independently requires compliance.

2.1 Federal PROWAG Final Rule (2023)

The U.S. Access Board published the final PROWAG rule in the Federal Register on August 8, 2023 (88 FR 53604), effective October 7, 2023. Because the Hawthorne/Weatherstone project construction commenced June 2024, the Final Rule governs all new construction and alterations within the project. Relevant provisions include:

- R202.3 (Alterations): Where existing elements are altered, each altered element within the scope of the project shall comply with the applicable requirements for new construction.
- R204.2 (Pedestrian Access Routes — Sidewalks): A pedestrian access route shall be provided within sidewalks and other pedestrian circulation paths located in the public right-of-way.
- R302.3 (Continuous Width): The continuous clear width of pedestrian access routes shall be 1.2 m (4.0 ft) minimum. Where the width is less than 1.5 m (5.0 ft), passing spaces of 5 ft × 5 ft are required at intervals of 200 ft maximum.
- R302.7 (Surfaces): Surfaces of pedestrian access routes shall be firm, stable, and slip resistant.
- R302.7.2 (Vertical Surface Discontinuities): Vertical surface discontinuities shall be 13 mm (0.5 in) maximum.
- R202.3.3 (Reduction in Access Prohibited): An alteration shall not decrease or have the effect of decreasing the accessibility of a facility below the requirements for new construction in effect at the time of the alteration.

- R102 (Equivalent Facilitation): The use of alternative designs, products, or technologies that result in substantially equivalent or greater accessibility and usability than the requirements in this document is permitted.

2.2 Indiana Department of Transportation (INDOT) Standards

INDOT's Field Inspection and Engineering (GIFE) Section 22 establishes standards that meet or exceed federal PROWAG minimums. Indiana requires a minimum sidewalk clear width of 5 feet as the continuous design standard — not merely as a passing space — with 4 feet permitted only as a pinch point. INDOT Section 22 explicitly states that 'doing the best you can is not sufficient for ADA compliance,' and that exceptions require a documented determination of technical infeasibility issued prior to construction. Where any Hawthorne Drive improvement received state funding, Indiana's stricter standard applies.

2.3 City of Bloomington PROWAG Adoption (2011)

The Bloomington Board of Public Works formally adopted PROWAG by Resolution 2011-99 on September 27, 2011. At that time, the governing document was the Notice of Proposed Rulemaking published July 26, 2011 (76 FR 44664, FR Doc. 2011-17721). By adopting PROWAG, the City acknowledged these standards as the appropriate level of care for pedestrian accessibility. The substantive technical requirements for pedestrian access route width, surface quality, curb ramp design, and drainage were present in the 2011 proposed guidelines and are carried forward without material change into the 2023 Final Rule. The City cannot credibly claim the 2023 standards were unknown or unexpected.

2.4 Program Access Standard (28 CFR 35.150)

Under 28 CFR 35.150, the City's programs, services, and activities must be accessible to persons with disabilities. The Neighborhood Greenway program is a City program explicitly marketed as serving 'walking and rolling' users. If the program consistently produces corridors that are not accessible to wheelchair users, the program itself fails to meet the City's program access obligations under Title II — regardless of whether any specific element triggered the alterations standard.

2.5 The City's Public Representations Create Independent Compliance Obligations

The City may assert that specific accessibility deficiencies fall outside the 'scope of the project' under the alterations standard because the project did not physically alter those specific elements. This defense fails for three independent reasons.

First, the City's own public representations defined this project as serving 'rolling' users — the City's own term for wheelchair users and others using mobility devices. This language appeared in the March 2022 announcement, the March 2024 press release, and the project website. A project that promises to serve wheelchair users but does not provide a continuous accessible route for wheelchair users has failed to deliver what was promised. The City cannot make accessibility representations to secure public support for a project and then disclaim accessibility obligations when the project is complete.

Second, the City designated approximately \$128,000 specifically for accessibility improvements as part of this project's budget. If accessibility improvements were always understood to be limited to discrete elements that do not produce a usable route, then this designation was either a misrepresentation of how public funds would be used or a misallocation of resources.

Third, the City's June 2022 survey of corridor users specifically asked about 'mobility device' use — including electric wheelchairs — and found that 75% of surveyed corridor users walk or use a mobility device. The City collected this data, incorporated it into project planning, and proceeded with construction. The City cannot claim it was unaware that mobility device users were among the intended beneficiaries when its own survey documented their presence.

2.6 The Alterations Standard Forecloses a Cost Defense

Under both the 2011 proposed guidelines and the 2023 Final Rule, cost and administrative preference are not valid defenses to non-compliance under the alterations standard. Only genuine physical constraints — underlying terrain, underground structures, adjacent developed facilities — constitute a valid defense, and these must be documented prior to construction per INDOT Section 22.

The City may assert that conditions at specific locations are 'no worse than before' or represent an improvement over prior conditions. This assertion is legally insufficient. The standard triggered by an alteration is not whether conditions improved marginally — it is whether the altered facility meets the requirements for new construction to the maximum extent feasible. A flooded ramp or impassable alley cut that pre-existed the project does not become compliant because it was not made worse. When the City undertook construction within this corridor, it assumed the obligation to bring altered elements into compliance.

3. Project Background and Documentary Record

The Hawthorne/Weatherstone Neighborhood Greenway project underwent a multi-year public planning process, with public meetings held in March 2022, October 2022, and December 2022. The documentary record of this process reveals a pattern in which accessibility for 'rolling' users was prominently featured in public communications but progressively de-emphasized in technical design documents.

3.1 March 2022: Project Launch with 'Rolling' Language

The City's initial public announcement of the project, distributed in March 2022, stated:

"Past Neighborhood Greenway projects have shown an increase in the number of people walking, rolling, and bicycling in the area."

This language explicitly identified wheelchair users and others who 'roll' as intended beneficiaries of the project from its inception.

3.2 June 2022: City Survey Documents Mobility Device Users

The City commissioned a survey of corridor users, conducted by Indiana University's SPEA-V 550 survey research course. The survey instrument specifically asked: 'Do you walk or use a mobility device (e.g. electric wheelchair) on the Neighborhood Greenway?' The survey found that 75% of respondents who use the Greenway walk or use a mobility device. Among those who walk or use a mobility device, 78% use the corridor at least weekly and 35% use it daily.

The survey also asked respondents what could be done to make the Greenway more accessible. This data was collected and available to City staff during the design process.

3.3 December 2022: 'Rolling' Omitted from Technical Presentation

At the third public meeting (December 8, 2022), City staff presented detailed design plans. Slide 11 of this presentation stated:

"Projects in Bloomington have shown an increase in walking and bicycling along Neighborhood Greenway streets."

The omission of 'rolling' from this internal design presentation — when the term had appeared in the March 2022 public announcement and would later reappear in the March 2024 press release — suggests that as the project moved from public communication to technical design, the accessibility needs of mobility device users were not carried forward with the same priority.

Critically, Slide 17 of the same presentation stated:

"Hawthorne Drive and Atwater Avenue: Staff agrees further study and design solutions are needed at these intersections."

This constitutes documented pre-construction notice that City staff had identified the Hawthorne/Atwater intersection as requiring design solutions. The December 2022 presentation also confirmed that 'New ADA curb ramps in bump outs at 1st St' would be installed as part of this project, demonstrating that the City possessed the technical capacity and contractor resources to install compliant infrastructure.

3.4 March 2024: Construction Announcement Restores 'Rolling' Language

The City's March 26, 2024 press release announcing the commencement of construction restored the 'rolling' language:

"Past Neighborhood Greenway projects have shown an increase in the number of people walking, rolling, and bicycling in the project areas."

The press release also represented that 'existing features [would be] modified as necessary to bring them into compliance where feasible and appropriate.'

3.5 Project Completion: No Accessible Route for 'Rolling' Users

Construction was completed in 2024. The Hawthorne corridor remains inaccessible to wheelchair users due to the conditions documented in Section 4 of this complaint. The 'rolling' users identified as beneficiaries in the City's public communications cannot use the corridor the City built for them.

4. Documented Conditions Establishing Absence of Accessible Route

The following conditions are presented as documented evidence that no continuous accessible Pedestrian Access Route exists along Hawthorne Drive. These examples are not intended to be exhaustive. The complainant requests that the City conduct a complete audit of the entire length of Hawthorne Drive from 3rd Street to Weatherstone Lane as part of its response to this complaint.

4.1 Condition A: Impassable Alley Cut, 700 Block of S. Hawthorne Drive

Location: West side sidewalk, 700 block of S. Hawthorne Drive (between E. 1st Street and E. University Street), at the east-west alley crossing.

Description of Condition:

The sidewalk on the west side of the 700 block of S. Hawthorne Drive is interrupted by an east-west alley crossing. At this crossing, the sidewalk surface transitions abruptly to loose gravel and deteriorated asphalt. The surface is not firm, not stable, and not slip resistant as required by PROWAG R302.7. Vertical surface discontinuities at the crossing substantially exceed the 13 mm maximum permitted by R302.7.2. There is no compliant blended transition or curb ramp treatment connecting the sidewalk to and across the alley. The condition renders the pedestrian access route impassable for wheelchair users and persons using mobility aids. The east side of this block has no sidewalk at all, meaning there is no accessible route available on either side of the street.

The alley crossing is City infrastructure within the public right-of-way. Responsibility for maintaining an accessible pedestrian access route at this location rests with the City, not with adjacent property owners.



Fig. 1: Eastward view of alley cut, 700 block of S. Hawthorne Drive. (Source: Google Maps Street View)



Fig. 2: Westward view of alley cut, 700 block of S. Hawthorne Drive. Deteriorated asphalt and gravel surface visible on the west side sidewalk. (Source: Google Maps Street View)



Fig. 3: Close-up of alley transition surface, west side of S. Hawthorne Drive viewed in the southward direction. Deteriorated asphalt, loose gravel, and inadequate curb edge are clearly visible.

4.2 Condition B: Drainage Failure at Southeast Corner, Hawthorne Drive and Atwater Avenue

Location: Southeast corner of Hawthorne Drive and Atwater Avenue.

Description of Condition:

The southeast corner of Hawthorne Drive and Atwater Avenue contains a wheelchair access ramp. Following rainfall, the ramp area and surrounding corner accumulate standing water of sufficient depth to render the ramp area entirely impassable to wheelchair users and persons using mobility aids, as documented in the photographic evidence below.

The City's own December 2022 project presentation specifically identified the Hawthorne/Atwater intersection as requiring 'further study and design solutions.' This acknowledgment establishes that the City had pre-construction notice of accessibility concerns at this location.

The City has since installed traffic-calming signage at this intersection. While such measures may address vehicle speed concerns, they do not remediate the physical accessibility barrier: a flooded curb ramp remains impassable regardless of traffic conditions.



Fig. 4: Southeast corner of Hawthorne Drive and Atwater Avenue after rainfall. Standing water visible in foreground covers the curb ramp area and adjacent corner, rendering the pedestrian access route impassable.

5. South Woodlawn Avenue: A Higher-Use Parallel Corridor

South Woodlawn Avenue between Bryan Park and Third Street is among the busiest pedestrian corridors in Bloomington. It serves those who commute on foot to Indiana University from the neighborhoods of Elm Heights, Bryan Park, and Deer Park. The parking lots at Bryan Park provide approximately 240 free parking spaces; on busy school days these lots fill throughout the day with commuters who then walk north to campus. Woodlawn is also a primary access route to the largest city-center park in Bloomington. It carries pedestrian volumes many times greater than the isolated residential section of Hawthorne Drive that is the subject of the conditions documented in Section 4.

Despite this heavy use — and despite the presence of existing sidewalks along much of its length — South Woodlawn Avenue is effectively inaccessible to wheelchair users and persons with mobility disabilities. The following photographs document representative conditions. This complaint does not assert these as the subject of the current grievance; they are presented to establish the accessibility context relevant to the preferred resolution described in Section 7.



Fig. 5: Northward view along South Woodlawn Avenue showing one of the Bryan Park commuter parking lots. There is no sidewalk on the east side of the street to serve pedestrians from this lot.



Fig. 6: Alley cut on the 700 block of South Woodlawn Avenue. The white reference block measures $2\frac{3}{4}$ inches, illustrating that the vertical drop at this crossing exceeds the PROWAG R302.7.2 maximum of 0.5 inches by a factor of more than five.



Fig. 7: Southwest corner of South Woodlawn Avenue and East University Street. A curb ramp with detectable warning surfaces demonstrates the City's awareness of and capacity for accessibility improvements on this corridor.



Fig. 8: Southeast corner of South Woodlawn Avenue and Atwater Avenue. A utility pole is positioned within the curb ramp area, obstructing the accessible path despite the presence of detectable warning surfaces. (Source: Google Maps Street View)

6. Pattern of Non-Compliance and Systemic Concern

The conditions documented in Section 4 are presented as specific, photographically verified examples. They are not isolated anomalies. The complainant has identified, through direct observation, additional potential accessibility deficiencies along the Hawthorne Drive corridor that were not remedied by this project. These include locations where existing sidewalk widths may not meet the minimum 4-foot federal standard, locations where curb ramp conditions may not meet current technical specifications, and locations where the absence of sidewalk on one side of the street with non-compliant conditions on the other leaves no accessible route.

The pattern is consistent with a project planning and execution process that did not systematically evaluate accessibility conditions along the full corridor before and after construction — despite the City's own documentation that 75% of corridor users walk or use mobility devices, and despite the City's explicit promise to serve 'rolling' users.

6A. City-Commissioned Survey Results Do Not Establish Compliance

In September 2021, the City entered a contract with Infrastructure Management Services (IMS) to assess conditions across all of the City's 237 miles of public use streets. The City's May 31, 2022 public announcement described the scope of the assessment as follows: 'The City of Bloomington Street Division is conducting a citywide assessment that will determine the current condition of streets, sidepaths, sidewalks, and accessible curb ramps.' The completed results were presented to City Council in June 2023. The City has cited the results of this assessment in communications with the complainant as evidence of its compliance oversight activities.

The complainant has documented at least two locations in the Bloomington pedestrian network rated as 'good' by the IMS survey that are demonstrably non-compliant under ADA and PROWAG standards, as illustrated below. Should the City assert that a professional compliance review was conducted on the Hawthorne corridor, the complainant requests that the methodology and detailed findings of that review be made publicly available. A general representation that a review was undertaken is not sufficient to establish compliance.

Location 1: East University Street Alley (~412 E. University St.)



Fig. A1: City alley entrance at approximately 412 E. University Street, rated 'good' in the IMS survey. The location lacks a compliant curb ramp or blended transition.

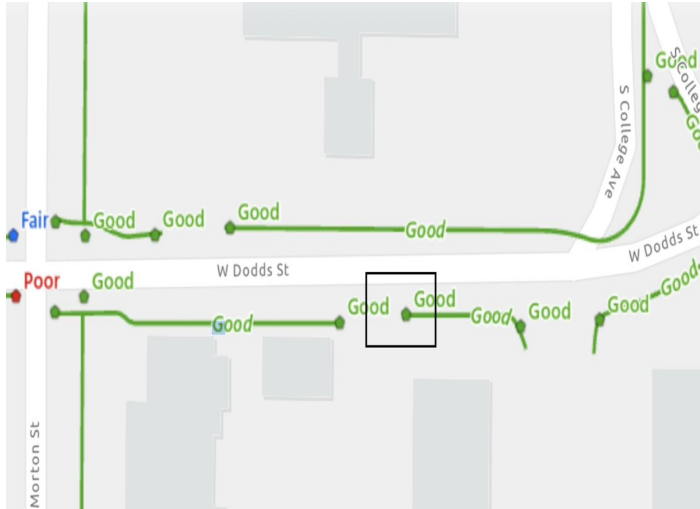


IMS survey map: E. University Street showing "Good" ratings at and near the alley crossing (~412 E. University St.), highlighted with box.

Location 2: West Dodds Street (~231 W. Dodds St.)



Fig. A2: Curb ramp at approximately 231 W. Dodds Street. A utility pole is positioned within the ramp landing, blocking the accessible path entirely. This location was rated 'good' by the IMS contractor.



IMS survey map: W. Dodds Street showing "Good" ratings in the vicinity of the inaccessible curb ramp (~231 W. Dodds St.), highlighted with box.

7. Remedies Requested

The complainant requests remedies in two tiers. The first tier addresses the specific documentation and accountability obligations created by the City's public representations regarding this project and is non-negotiable. The second tier describes the complainant's preferred resolution of the broader pedestrian access failure in this neighborhood, and is offered in the good-faith recognition that public resources should be directed where they produce the greatest benefit to persons with disabilities.

Tier 1 — Required Remedies (Non-Negotiable)

Remedy 1A — Complete Accessibility Audit of the Full Hawthorne Corridor.

The City shall conduct a documented accessibility audit of the full length of Hawthorne Drive from 3rd Street to Weatherstone Lane, evaluating all sidewalks, curb ramps, alley crossings, drainage conditions, and pedestrian access route continuity against PROWAG Final Rule (2023) and INDOT Section 22 standards. The audit shall be conducted by or reviewed by a qualified ADA accessibility specialist and the results provided to the complainant.

Remedy 1B — Documentation of Technical Infeasibility Determinations.

For any element on Hawthorne Drive that the City determines cannot be brought into full compliance due to genuine physical constraints, the City shall provide written documentation of alternatives considered and the basis for the technical infeasibility determination, consistent with INDOT Section 22 requirements.

Remedy 1C — Written Response Addressing Accessible Route for 'Rolling' Users.

The City shall provide a written response explaining how it intends to deliver the accessible pedestrian route promised to 'rolling' users in the City's public representations regarding this

project. If the City's position is that no continuous accessible route was ever intended, the City shall explain why public communications represented otherwise and confirm in writing that that is its position.

Tier 2 — Preferred Resolution of the Broader Pedestrian Access Failure

The complainant recognizes that the City faces competing demands on limited infrastructure resources, and that the goal of this complaint is not to compel expenditure for its own sake but to ensure that persons with disabilities, including those visiting the neighborhood, can access the pedestrian network. In that spirit, the complainant offers the following as its preferred resolution of the broader access failure that this complaint documents.

Under PROWAG R102, equivalent facilitation is expressly permitted: an alternative design or approach that results in substantially equivalent or greater accessibility and usability may satisfy the City's obligations. Under 28 CFR 35.150, a public entity may satisfy its program access obligation by providing access through alternative means, provided the alternative route is equally convenient, equally safe, and equally accessible.

South Woodlawn Avenue, one block east of Hawthorne Drive, is a far higher-use pedestrian corridor serving the same origin and destination points — residential neighborhoods to the south and Indiana University to the north. It has existing sidewalk infrastructure along most of its length. Bringing South Woodlawn Avenue into full accessibility compliance — repairing non-compliant alley cuts and crossings, installing compliant ramps at all intersections, providing an accessible crossing at the Bryan Park parking lot, ensuring that no obstruction reduces the clear width of the pedestrian access route, and ensuring a continuous compliant pedestrian access route for its full length — would provide an accessible alternative route that benefits a population of persons with disabilities many times larger than those affected by the accessibility gaps on the isolated residential section of Hawthorne Drive.

The complainant would therefore consider the following combination to constitute a satisfactory resolution of the broader pedestrian access failure documented in this complaint:

- Completion of the Remedy 1A accessibility audit of the Hawthorne corridor;
- Full remediation of South Woodlawn Avenue to provide a continuous, PROWAG-compliant pedestrian access route from Bryan Park to 3rd Street, including all alley crossings, curb ramps, driveway transitions, removal of obstructions from the pedestrian access route, and the provision of an accessible crossing at the Bryan Park parking lot.

The complainant emphasizes that this second-tier proposal is offered as a preferred resolution reflecting genuine concern for the disability community, not as a waiver of the Tier 1 remedies or as acceptance of any legal insufficiency in the City's Hawthorne Drive obligations. The Tier 1 remedies — audit, documentation, and written response — are non-negotiable regardless of any broader resolution.

8. Notice of Intent to Escalate

The complainant has discussed these concerns directly with the City's ADA Coordinator prior to filing this formal complaint. Should the City fail to provide a substantive response within a

reasonable period, or should the City's response consist of a referral to file an online maintenance report without commitment to address the issues identified herein within an explicitly stated time-frame, the complainant has the right to submit this complaint and the City's response to the Indiana Civil Rights Commission and to the U.S. Department of Justice, Civil Rights Division.

The complainant notes that a response directing this complaint to an online maintenance reporting system would itself be significant: it would constitute a written acknowledgment that the City's process for addressing civil rights concerns under Title II of the ADA is an informal maintenance queue with no defined timeline or compliance standard. Such a response would be included in any escalation filing.

9. Supporting Documents and References

- U.S. Access Board, Public Rights-of-Way Accessibility Guidelines (PROWAG), Final Rule, 36 CFR Part 1190, published August 8, 2023, effective October 7, 2023 (88 FR 53604).
- U.S. Access Board, Accessibility Guidelines for Pedestrian Facilities in the Public Right-of-Way, Notice of Proposed Rulemaking, 76 FR 44664 (July 26, 2011), FR Doc. 2011-17721.
- Indiana Department of Transportation (INDOT), Field Inspection Engineering (GIFE), Section 22: ADA Compliance for Sidewalk, Curb Ramps, Blended Transitions, and Pedestrian Facilities.
- City of Bloomington, Board of Public Works, Resolution 2011-99, September 27, 2011 (PROWAG adoption).
- City of Bloomington, Hawthorne/Weatherstone Neighborhood Greenway — Announcement Mailer, March 2022.
- City of Bloomington, Neighborhood Greenway Survey Final Report, June 2022.
- City of Bloomington, Hawthorne/Weatherstone Neighborhood Greenway — Third Public Meeting Presentation, December 8, 2022.
- City of Bloomington, News Release: Hawthorne/Weatherstone Neighborhood Greenway, March 26, 2024 (bloomington.in.gov/news/2024/03/26/5893).
- City of Bloomington, Hawthorne/Weatherstone Project Page: bloomington.in.gov/engineering/projects/hawthorne.
- City of Bloomington, News Release: City to Update Street, Sidepath, Sidewalk and Accessible Curb Ramp Condition Data, May 31, 2022 (bloomington.in.gov/news/2022/05/31/5195).
- City of Bloomington, News Release: City Receives Updated Street, Sidepath, Sidewalk and Accessible Curb Ramp Condition Data, June 9, 2023 (bloomington.in.gov/news/2023/06/09/5649).
- Photographic evidence: Figures 1–8, A1–A2 documenting conditions described in Sections 4, 5, and 6A, attached hereto.

Respectfully submitted,

[Redacted Signature]

[Redacted Title]

[Redacted Address]

[Redacted Contact Information]

Date: March 20, 2026

Note: This grievance was composed with AI assistance (predominantly claude.ai).